

ASCII MASTER FLOW – PANEL 1/12: Constitutional location, court map and dated capacity

ARTICLES 214-237: STATE-LEVEL CONSTITUTIONAL JUSTICE

Supreme Court -> High Court -> district and subordinate courts.

214: High Court for each State | 231: common High Court by parliamentary law.

25 HIGH COURTS as at 5 September 2026; one-per-State/UT is false.

HISTORY

1862: Calcutta, Bombay and Madras | 1866: Allahabad.

Inherited jurisdiction continues through Article 225 subject to Constitution and law.

DATED CAPACITY: DEPARTMENT OF JUSTICE, 1 JULY 2026

1,122 sanctioned | 781 working | 341 vacant | vacancy share about 30.4%.

Never quote working strength or vacancy without its date.

CORE ROLE

constitutional remedies + appeals + supervision + judicial administration.

MUST REMEMBER: Audit Articles 214-237 as separate constitutional controls: High Court

existence/common courts, judge appointment and service, jurisdiction, writs,

superintendence, court administration and subordinate-judiciary recruitment/control must not be collapsed into one judicial-independence claim.

ASCII MASTER FLOW – PANEL 2/12: High Court judges: appointment, qualification and independence

ARTICLE 216

Chief Justice + other judges as President considers necessary.

ARTICLE 217 APPOINTMENT

President -> CJI + Governor consultation -> HC Chief Justice for a puisne judge.

ORIGINATING HC: Chief Justice + two senior-most colleagues.

SC COLLEGIUM FOR HC APPOINTMENT: CJI + two senior-most SC judges.

QUALIFICATION

Indian citizen + ten judicial-office years OR ten High Court advocacy years.

No distinguished-jurist route; no constitutional minimum age.

SERVICE

Article 219 oath before Governor/appointee | retirement 62 | resignation to President.

Article 218 applies the Article 124 removal route | Article 221 protects conditions.

Article 229 administrative expenses are charged on the State Consolidated Fund.

CASE ARC

First Judges Case (1981) -> executive primacy | Second Judges Case (1993) -> judicial primacy

Third Judges Case (1998) -> plural collegium

| Fourth Judges Case (2015) -> collegium remains operative.

ASCII MASTER FLOW – PANEL 3/12: Transfer, temporary judges and High Court administration

ARTICLE 222 TRANSFER

President acts after CJI consultation; consent is not constitutionally required.

CURRENT PROCEDURE: CJI consults four senior-most SC judges + both affected HC Chief Justices.

Sankalchand Himmatlal Sheth (1977): full, effective consultation; public interest, not punishment.

TEMPORARY CAPACITY

223 acting Chief Justice | 224 additional/acting judges | 224A consenting retired judge.

These address temporary need; they do not replace regular appointments.

ARTICLE 229

Chief Justice/authorised officer appoints HC staff; Governor has limited rule/salary role.

TERRITORIAL DESIGN

230: Parliament may extend/exclude HC jurisdiction over a UT.

231: Parliament may create a common High Court.

Seats and benches follow constitutional, statutory and reorganisation arrangements.

ASCII MASTER FLOW – PANEL 4/12: Jurisdiction gateway and Article 226 safeguards

JURISDICTION MAP

225 inherited/existing jurisdiction | 226 writ | 227 supervision | 228 withdrawal
+ statutory civil, criminal, election, admiralty and testamentary fields.

ARTICLE 226 PURPOSE

Fundamental Rights + any other legal purpose: wider in purpose than Article 32.
Territorial, discretionary and respondent-sensitive: not a national writ.

ARTICLE 226(2)

Cause of action wholly or partly within territory can support relief against an outside respondent.
Residence alone is insufficient.

ARTICLE 226(3)

Qualifying application to vacate an ex parte interim order -> disposal within two weeks
from the later trigger, or next open day -> otherwise interim order stands vacated.

LIMIT

Not every High Court has identical ordinary original civil jurisdiction.

ASCII MASTER FLOW – PANEL 5/12: Five writs and the alternative-remedy firewall

WRONG -> WRIT

unlawful detention -> HABEAS CORPUS, including private detention

refused public/legal duty -> MANDAMUS, including a body performing public duty

ongoing jurisdictional excess -> PROHIBITION

completed jurisdictional error -> CERTIORARI

unlawful occupation of public office -> QUO WARRANTO.

ARTICLE 226 ALSO PERMITS ORDERS AND DIRECTIONS

Do not imprison remedies inside old English technical forms.

ALTERNATIVE REMEDY

Statutory appeal/revision ordinarily first, but writ discretion survives for:

Fundamental Rights | natural-justice failure | want of jurisdiction | challenge to vires.

EXAM FIREWALL

Alternative remedy is self-restraint, not extinction of jurisdiction.

ASCII MASTER FLOW – PANEL 6/12: Tribunals, Basic Structure and supervisory restraint

L. CHANDRA KUMAR (1997)

Articles 226/227 and 32 review are Basic Structure.

Articles 323A/323B tribunal decisions -> High Court Division Bench scrutiny.

Tribunals supplement; they neither disappear nor finally replace constitutional courts.

ARTICLE 227

Judicial + administrative superintendence over territorial courts/tribunals;

Armed-Forces-law forums excluded; petition or suo motu possible.

RADHEY SHYAM (2015): civil-court judicial orders belong under 227, not 226.

K. VALARMATHI (2025): supervision cannot supplant trial and statutory appeal.

ARTICLE 228

Substantial constitutional-interpretation question -> HC withdraws

-> decides question or case -> may return case with binding answer.

TRAP: supervision and withdrawal are not routine appeals.

CLOSE DISTINCTION: Keep Articles 226, 227 and 235 distinct. Article 226 reaches Fundamental Rights and other legal rights; Article 227 is supervisory rather than an ordinary appeal; Article 235 gives the High Court administrative control over the district and subordinate judiciary.

ASCII MASTER FLOW – PANEL 7/12: Articles 233-237 and current recruitment law

ARTICLE 233 DISTRICT JUDGES

Governor appoints/posts/promotes in consultation with High Court.

Article 233(2) text: outside-service candidate -> seven advocacy years + HC recommendation.

REJANISH K.V. v. K. DEEPA (2025 INSC 1208)

Prospectively overrules Dheeraj Mor.

Qualifying serving judicial officers may compete in direct recruitment using combined advocacy/judicial-service experience; minimum age 35; eligibility at application date.

ARTICLE 234 BELOW DISTRICT JUDGE

Governor's rules + State PSC consultation + High Court consultation.

ALL INDIA JUDGES ASSOCIATION (20 MAY 2025)

future Civil Judge entry -> three years Bar practice;

25% LDCE District-Judge promotion route + suitability control.

236 defines district judge/judicial service | 237 can apply chapter to notified magistrates.

ASCII MASTER FLOW – PANEL 8/12: Article 235 control and the district justice chain

ARTICLE 235 CONTROL IN HIGH COURT

posting + promotion + leave + disciplinary control, subject to law and appeal rights.

NRIPENDRA NATH BAGCHI (1966): control includes disciplinary authority.

CHANDRA MOHAN (1966): executive dominance in district-judge selection is unconstitutional.

INDEPENDENCE CHAIN

Governor/State recruitment role + mandatory HC consultation

-> High Court career control

-> trial judges insulated from the litigating executive.

DISTRICT STRUCTURE, SUBJECT TO STATE LAW

District Judge / Sessions Judge

-> Civil Judge Senior Division / Chief Judicial Magistrate

-> Civil Judge Junior Division / Judicial Magistrate.

Article 236 defines district judge broadly; names and pecuniary powers vary.

CRIMINAL CONTROL

Sessions death sentence -> High Court confirmation before execution.

Article 227 corrects jurisdiction; Article 235 administers careers: do not conflate them.

ASCII MASTER FLOW – PANEL 9/12: Legal aid and specialised access institutions

ARTICLE 39A + LEGAL SERVICES AUTHORITIES ACT, 1987

NALSA -> SLSA / High Court Legal Services Committee -> DLSA -> Taluk committee.

Eligibility uses statutory categories and prescribed income ceilings; one old figure is unsafe.

ORDINARY LOK ADALAT

settlement by consent | civil + compoundable criminal matters | no merits decision after failure.

PERMANENT LOK ADALAT

pre-litigation public-utility field | conciliation first | limited merits decision after failure.

ARBITRATION

agreement-based private adjudication of arbitrable civil/commercial disputes.

FAMILY COURTS / GRAM NYAYALAYAS

statutory specialised access; implementation and jurisdiction are not nationally uniform.

PYQ 2024: compare source, consent, field, criminal reach and legal effect.

ASCII MASTER FLOW – PANEL 10/12: All India Judicial Service: route, design and limits

ARTICLE 312 ROUTE

Rajya Sabha: two-thirds of members present and voting

-> Parliament may create service by law.

ARTICLE 312(3): AIJS cannot include posts below district judge.

CURRENT STATUS, 28 AUGUST 2026: no AIJS exists.

CASE FOR

national standards | wider pool | predictable recruitment | mobility and diversity.

CASE AGAINST

language and local law | State reservation/cadre design | federal role | career integration.

NON-NEGOTIABLE DESIGN

High Court role in selection/probation + Article 235 control + local-language testing
+ State-law training + federal consultation + transparent allocation.

Do not confuse AIJS with the 2025 Civil Judge Bar-practice rule.

ASCII MASTER FLOW – PANEL 11/12: Capacity, eCourts and data-governance reform

CAPACITY DIAGNOSIS

vacancies + staff/infrastructure + process/service delay + government litigation
-> backlog -> cost/undertrial hardship -> weaker rights and commercial certainty.

DATED HIGH COURT SNAPSHOT, 1 JULY 2026

1,122 sanctioned | 781 working | 341 vacant.

ECOURTS PHASE III, 2023-2027, RS 7,210 CRORE

record digitisation + e-filing/e-payments + e-Sewa Kendras + interoperable management.

NJDG

age/stage/workload visibility -> diagnosis and allocation;
not crude judge ranking or disposal quotas.

EXECUTABLE REFORM

appointment calendars | registry/staff capacity | accountable government appeals
| reliable service | age-based dockets | legal aid | cyber/privacy/local-language safeguards.
Digital-by-default must never become digital-only.

ASCII MASTER FLOW – PANEL 12/12: Comparison, PYQ controls and marks-scaled answer spine

SUPREME COURT | HIGH COURT | SUBORDINATE COURTS

Article 32 FR remedy | Article 226 FR + legal rights | statutory trial jurisdiction
national apex | territorial constitutional court | local facts and first adjudication
no Article 235 role | Articles 227/229/235 administration | controlled by High Court.

PYQ ROUTES

2024 GS-II Q2, 10 marks/150 words: Lok Adalat versus Arbitration Tribunal.

2025 GS-II Q13, 15 marks/250 words: collegium compared with United States.

2019/2021 Prelims routes: HC review and retired-judge distinctions.

10 MARKS

thesis -> 3 article distinctions -> one case -> limit -> verdict.

15 MARKS

architecture -> mechanism -> case/current evidence -> criticism -> targeted reform.

20 MARKS

multi-dimensional matrix -> causal chain -> counterargument -> executable safeguards.

FINAL LINE

Independent State justice needs broad remedies, restrained supervision,
High Court-controlled careers, dated capacity evidence and inclusive digital administration.

LEGAL/SOURCE LIMIT: India has 25 High Courts. The 1 July 2026 DoJ snapshot is 1,122
sanctioned, 781 working and 341 vacant. Rejanish K.V. (2025 INSC 1208) prospectively
replaced the categorical Dheeraj Mor exclusion; AIJS remains uncreated.